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LEXFLIP: A Dissociation Diagnostic for Legal Meaning Preservation Metrics

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Abstract: Does a simplified legal clause still say what the original said? The two checks in current use cannot show it. They require an identical pair to score highest and an unrelated pair to score lowest. Lexical overlap and legal force move together between those two endpoints, so a function of token overlap passes both checks. We propose a dissociation. One item holds surface form fixed while legal force changes, and a control changes form while legal force stays fixed. We release LEXFLIP: 373 minimal edits of Quebec statutory French that change legal force and keep a token overlap of 0.93. Two force-preserving control sets use the same sentences. LEXFLIP is a diagnostic, a necessary condition for a legal metric, and not a benchmark. The seven embedding and BERTScore metrics spend only 0.022–0.039 of their identical-to-unrelated range on a legal edit. They spend about as much on an edit that changes nothing in law. Bidirectional natural language inference spends 0.670 on the legal edit and nothing on the inert one, although the identical-pair check would disqualify it. Prompted judges from two model families fall between. On FRJUDGE, against a measured human ceiling of $r = 0.597$, a bare length feature outscores every semantic metric. Across the metrics in current use, correlation with human ratings does not predict sensitivity to a change in the law.

Keywords: legal text simplification, meaning preservation, evaluation metrics, construct validity, natural language inference, large language model judges, French legal language

1. Introduction

Rewriting a legal text for a lay reader has an unusual failure mode. When a news summary drops a qualifier, the reader is mildly misinformed. When an insurance clause drops a qualifier, the reader may be uninsured. In *Moffatt v. Air Canada*, 2024 BCCRT 149 [1], British Columbia's Civil Resolution Tribunal found an airline liable in negligent misrepresentation. The airline's website chatbot misstated the airline's own fare policy. A small-claims tribunal decision binds no court and says nothing about statutory text, so we cite it only to illustrate the failure mode. Legal research tools that claim to be free of hallucination still err on 17 to 33% of queries [2]. These examples are English and common law. The data in this article are Quebec statutory French, from a civil-law jurisdiction that enacts its statutes in both languages. Section 6 returns to what this does and does not license.

If a system simplifies legal text automatically, an automatic metric checks the result. Two checks are in current use for such metrics [3, 4]. A sentence paired with itself must receive the maximum score, and a sentence paired with an unrelated one must receive the minimum. Both checks are necessary, and both are easy to state. But between an identical pair and an unrelated pair, lexical overlap and legal meaning change *together*, in the same direction. Any monotone function of token overlap passes the identical-pair check by construction, because nothing overlaps a sentence more than the sentence itself. It passes the unrelated-pair check whenever the unrelated pairs overlap less than the pairs they are compared with. Selecting unrelated pairs for low overlap ensures this: our unrelated probes have a token Jaccard of 0.089, against 0.93 for the edited pairs below. The two checks test calibration at two endpoints. They do not test what the metric reads.

The remedy is a *dissociation*: an item that pulls the two confounded variables apart, so that legal force changes while surface form does not. Replace *doit* (must) with *peut* (may). More than ninety percent of the tokens stay the same. The sentence stays fluent and statutory in register. An obligation, however, becomes a permission (Figure 1). A metric that measures legal meaning must drop sharply. A metric that measures overlap cannot. The converse matters as much. Replace *lorsque* with *quand* (both mean "when"). The sentence changes by one word and the law stays exactly where it was, so a metric that measures legal meaning must *not* drop. A dissociation needs both cells: an edit that moves the law, and an edit of the same size that does not. We release LEXFLIP, 373 perturbations of Quebec statutory French that change legal force, with force-preserving controls on the same sentences. We also release a four-part validation protocol and a harness that accepts any scoring function.[1] Untrained metrics, regressors and prompted judges therefore take the same test.

LEXFLIP is a *diagnostic*, not a benchmark. It states a necessary condition for a metric of legal meaning preservation. The metric must react to a legally decisive edit. It must not react to a legally inert one. It does not rank systems on legal quality, and a metric tuned to pass it does not become a good metric by doing so. Four research questions organise the article.

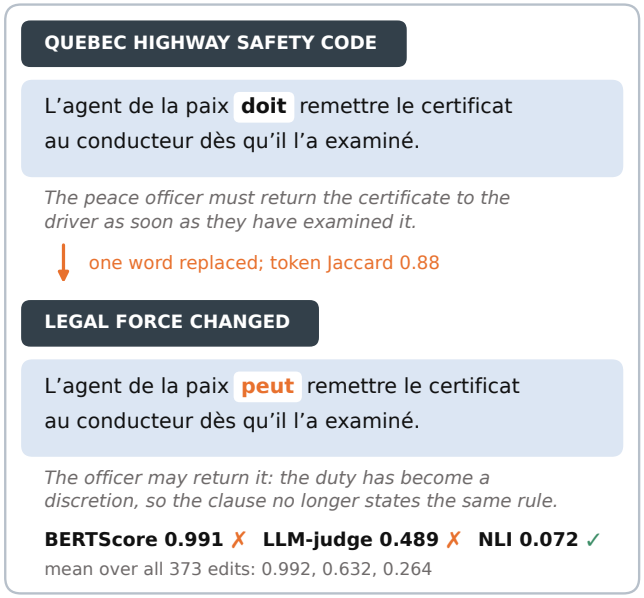
- **RQ1.** Can the validation checks in current use separate a metric that reads legal meaning from one that reads lexical overlap?
- **RQ2.** Do existing metrics react to an edit that changes legal force at fixed surface form? Do they stay still under an edit of the same size that keeps legal force?
- **RQ3.** Does a metric's correlation with human ratings predict that sensitivity?
- **RQ4.** Does training a metric against the diagnostic transfer beyond its training distribution?

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[1] Code, data and result files: `https://github.com/Nyvora-Vision-Labs/LexFlip`.

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Figure 1. One LEXFLIP item. Replacing *doit* with *peut* turns a duty into a discretion and leaves the rest of the sentence unchanged. A metric that reads legal meaning must drop, and a metric that reads overlap cannot. Scores are shown to three decimals, after the min–max normalisation of Table 3. The judge's ten-point rating is rescaled in the same way. Over the whole set the edit costs BERTScore 0.022 of its own identical-to-unrelated range and the judge 0.370, against 0.670 for bidirectional NLI.



This article makes four contributions.

1. It states a four-part validation protocol for any scorer of legal meaning preservation. The protocol applies to any scoring function and presupposes no architecture.
2. It releases LEXFLIP, a diagnostic set of 373 minimally edited Quebec statutory sentences whose legal force has changed and whose surface form has hardly changed. Two force-preserving control sets are built on the same sentences.
3. It administers the protocol to thirteen untrained scorers: similarity metrics, natural language inference, surface features and a prompted large language model judge. It also tests a second judge from a different model family, and seven fine-tuned regressors that we report separately. Correlation with human ratings and sensitivity to a legally decisive edit come apart.
4. It trains metrics against the protocol. The constraint does not transfer from the training mixture to the statutory probes.

1.1. Related Work

Evaluating simplification and meaning preservation. BLEU does not correlate with meaning preservation when a system splits sentences [5]. More generally, Alva-Manchego et al. [6] show that the agreement of automatic simplification metrics with human judgments depends on the kind of simplification and on the quality of the outputs. Legal simplification adds a further requirement: the legal effect must survive the rewrite [7]. Our point of departure is the trained meaning-preservation metric of Beauchemin et al. [3] and its legal successor, fitted to FRJUDGE [4]. FRJUDGE is the only publicly released corpus we know of with human ratings of legal meaning preservation.

Minimal pairs and behavioural tests. The diagnostic belongs to a tradition of minimally different inputs.

- Contrast sets [8] perturb test items in small ways that change the label.
- CheckList [9] separates *directional* tests, where an edit should move the output, from *invariance* tests, where it should not.
- PAWS [10] pairs sentences with almost total lexical overlap that are not paraphrases.
- NLI stress tests [11] and negation benchmarks [12] probe edits like the ones our rules make.

For generation metrics, perturbation checklists [13] and blind-spot analyses [14] find that embedding-based metrics are insensitive to negation and to similar errors that change meaning. Chen and Eger [15] show that metrics built on natural language inference repair much of that gap, and Mujahid et al. [16] run the complementary experiment for factual consistency in summarization. In CheckList's terms, LEXFLIP is a directional test, and the force-preserving controls of Section 3.2 are its invariance test. Part of our central finding confirms these results for a new language and register: overlap-based metrics barely react to a high-overlap edit that changes meaning. Three things are new. The property we hold fixed and move is legal force, not truth value or sentiment. The validation checks in current use for legal metrics are satisfiable by construction. And each legal edit is paired with a specificity control on the same sentence, which the general-domain studies above do not provide.

Legal NLP and LLM judges. Entailment over legal text is an established task. COLIEE includes statute entailment [17], and ContractNLI applies document-level inference to contracts [18], where negation by exception is a known difficulty. LegalBench [19] measures legal reasoning in large language models. Prompted models now serve as judges [20], also in legal evaluation [21], and their scores are known to depend on presentation order and wording. Section 4.7 tests both. We follow Bean et al. [22] and Pacchiardi et al. [23] on construct validity. For statistics we follow Deutsch et al. [24], Steiger [25] and Graham and Baldwin [26], and for rating distributions Plank [27] and Xu and Jurgens [28].

2. What Would Validate a Legal Meaning Metric?

The four requirements below apply to any scorer $m(o,s)$ of an original clause o and a candidate simplification s. None of them presupposes an architecture. Table 1 defines the technical terms that we use from here on, for readers who come from law rather than from natural language processing.

R1: a measured ceiling. A correlation with human judgment means nothing until we know what correlation a human achieves. A corpus with $k \geq 3$ ratings per item gives this at no cost. Hold out one rater, correlate that rater's ratings with the mean of the other $k-1$, and average over the held-out position. That answers the question *is the metric as good as an expert?* The Spearman–Brown reliability of the k-rater mean answers a different question: *is it as good as the aggregate label allows?* A metric can sit above the first and below the second without being superhuman, because predicting an average is easier than being a rater. The two numbers must also come from the same items and the same kind of target. Section 4.5 computes them in this way.

Table 1. Terms used in this article.

Term	Meaning
Metric, scorer	An automatic function that gives a number for how well a simplification s keeps the meaning of an original o.
Legal force	What a provision does in law: who it binds, whether it obliges or permits, what it covers, and how much.
Dissociation	A test item in which two variables that usually move together are separated. Here, surface wording stays fixed and legal force changes, or the reverse.
Token Jaccard	The share of distinct words two sentences have in common: 1 for identical sentences, 0 for no shared words.
Margin	The share of a metric's own identical-to-unrelated range that it uses on a legally decisive edit. Higher is better.
Specificity drop	The same quantity for an edit that keeps legal force. The ideal value is 0.
Selectivity	Margin minus specificity drop, on the same sentences.
NLI (bidirectional)	Natural language inference: a model gives the probability that one sentence follows from another. We test both directions and keep the lower value.
Pearson r, Spearman ρ	Correlation of a metric with the human ratings: 1 is perfect agreement, 0 is none. ρ uses ranks only.
Human ceiling	The correlation one annotator reaches with the mean of the other four. It shows how well a single expert agrees with the panel.
Isotonic calibration	A monotone map from a metric's raw score to the 1–10 scale, fitted on training data. It changes the scale and keeps the ranking.
Bootstrap interval	A 95% range for a statistic, found by recomputing it on many resamples of the items.

R2: identical supervision. Published comparisons put an unsupervised cosine similarity and a fine-tuned regressor in one table, rescale the similarity by a constant, and report RMSE for both. A constant rescaling fixes the range but not the location or the shape of the distribution. A similarity that occupies $[0.7, 1.0]$ therefore records a large RMSE however well it ranks, and the RMSE column measures supervision, not judgment. We instead fit a monotone map from raw score to the human scale on the training split alone. Isotonic regression cannot improve a ranking, and rank statistics move by at most 0.014.

R3: a trivial-feature control. Simplifications are usually shorter than their originals, and omission is the most frequent annotated error. A rubric that deducts one point per identified error therefore yields a label that the number of deleted words partly predicts. We require a supervised baseline over surface features alone, fitted under R2.

R4: dissociation. On naturally occurring pairs, surface form and legal force vary together. The endpoint checks inherit this confound. Let s' be a perturbation of s with token Jaccard $J(s,s') \approx 1$ and legal force $L(s') \neq L(s)$. Let (a,b) be a pair of unrelated sentences of the same register. We report the *margin fraction*

$$\frac{\overline{m(s,s)} - \overline{m(s,s')}}{\overline{m(s,s)} - \overline{m(a,b)}},$$

the share of the metric's own identical-to-unrelated range that it spends on a legally decisive edit. The margin charges a metric against the range it actually has, not against a nominal $[0,1]$. A metric that treats the edited sentence as it treats an unrelated one scores 1. A pure overlap function scores near 0. The margin is not the rate at which (s,s) outranks (s,s'). That rate is the weaker quantity, because a metric can rank every item correctly while it moves a thousandth of its range.

A large margin is necessary but not sufficient. A metric that dropped on *any* edit would also earn one. We therefore read the margin beside the same quantity on a control edit s'' that leaves legal force unchanged, $L(s'') = L(s)$. A counterfactual edit isolates the variable of interest only against such a meaning-preserving control [29]. We call the second quantity the *specificity drop*, with an ideal value of 0. We call the difference between the two, on the same source sentences, the *selectivity*. The dissociation holds for a metric only when the margin is large *and* the drop is near zero. Two kinds of control matter, and we build both. The first is a single inert rewrite at the overlap of the legal edit. The second is a plain-language paraphrase at low overlap, which is what a real simplifier produces.

The ideal margin is not 1. A sentence whose obligation became a permission still concerns the same subject. Nothing requires a metric to place it as far away as an unrelated statute. No human baseline on LexFlip exists to say where a competent rater would place it. We therefore read margins comparatively, across metrics and against each metric's own specificity drop, and not against a fixed bar.

3. Materials and Methods

3.1. The LexFlip Diagnostic

The source sentences come from two Quebec statutes that do not occur in FrJudge: the Automobile Insurance Act and the Highway Safety Code. Each sentence receives one minimal edit that changes legal force and leaves the rest of the sentence intact. We organise the inventory by legal effect, not by linguistic category. Seven families make up *tier 1*, where the edit changes who is bound, whether an obligation exists, what is covered, or how much.

- Modality: *doit* ↔ *peut*.
- Party: *l'assuré* ↔ *l'assureur*.
- Polarity: *ne . . . pas* is dropped.
- Quantum: an amount or period is multiplied by 10.
- Scope: *tous les* → *certains*.
- Time: *avant* ↔ *après*.
- Exception: *sauf si* → *si*, *sauf* → *y compris*, *à moins que* → *pourvu que*.

Tier 2 holds the connective shifts (*et* ↔ *ou*) and the vehicle-class shift (*automobile* ↔ *véhicule*). We report every result for each tier separately as well.

The diagnostic would fail if a metric could find the edited item because it reads badly. A conservative French well-formedness check therefore removes every perturbation that introduces a grammatical artefact. The check flags none of the 400 unmodified

sources. Of the 400 sampled sources, 25 admit no rule, and for 2 every candidate edit fails the check. This leaves 373 pairs (310 in tier 1), with a mean token Jaccard of 0.93 and none below 0.75. Table 2 gives examples, and Table 4 gives the number of items for each rule and tier.

What the labels assert. The labels are definitional. We assert that an edit changes legal force, and we did not ask lawyers to rate each item. The strength of that assertion depends on the rule.

- Modality covers 193 of the 373 items. Its label rests on the Quebec Interpretation Act [30]. Under it, a thing that "shall" or "must" be done is imperative. A thing that "may" be done is permissive.
- Polarity, quantum and time edits change the rule on its face.
- Party swaps, connectives and the vehicle-class rule are weaker. Their effect depends on the provision and on statutory definitions. For example, *automobile* is a defined term in the Automobile Insurance Act, so the vehicle-class edit changes scope through a definition. It does not reverse a rule.

Several rules alter legal force without reversing it. An obligation that becomes a discretion is not the opposite rule, so we speak of a change of force throughout. The scope rule also has a visible weakness. It maps singular *tout* and *toute* to *certain* and *certaine*, which gives unidiomatic statutory French ("*certaine chose*") on 34 items. We keep the released set unchanged so that every number stays comparable. Removing those items moves no reported margin by more than 0.032. Section 3.3 describes the expert audit of a stratified sample.

Probes and normalisation. For each source s with perturbation s', we score (s,s) and (s,s'). The unrelated probes are 373 separate pairs (a,b). Each pairs a sentence of the Automobile Insurance Act with a sentence of the Highway Safety Code. The two share the register but not the content, with a unigram overlap (ROUGE-1 F) of at most 0.25. Section 4.1 reports how the margin moves when we redraw these pairs or change the overlap threshold.

For display, we min–max normalise each metric over all 3×373 of its item-level scores. The *mean* of a probe therefore need not sit at 0 or 1. For example, the identical pairs of bidirectional NLI average 0.784, because mDeBERTa's entailment probability on identical input varies from item to item. The margin is a ratio of differences, so this rescaling does not change it. *Discrimination* is the share of items with $m(s,s) > m(s,s')$ strictly. A tie therefore counts as a miss, and we report the tie rate beside it.

Table 2. LEXFLIP examples from seven tier-1 rules, with the edited span in bold. Each edited sentence shares almost all of its tokens with the original and changes the legal force of the provision.

peut → doit	*tier 1*
o: La Société peut refuser une indemnité, en réduire le montant, en suspendre ou en cesser le paiement dans les cas suivants: 1.	
s′: La Société **doit** refuser une indemnité, en réduire le montant, en suspendre ou en cesser le paiement dans les cas suivants: 1.	
doit → peut	*tier 1*
o: Lorsqu'il n'y a pas de feux pour piétons, un piéton doit se conformer aux feux de circulation.	
s′: Lorsqu'il n'y a pas de feux pour piétons, un piéton **peut** se conformer aux feux de circulation.	
drop *ne . . . pas*	*tier 1*
o: Les feux visés au paragraphe 2° ne sont pas requis pour tout véhicule dont la largeur excède 2,03 mètres.	
s′: Les feux visés au paragraphe 2° sont requis pour tout véhicule dont la largeur excède 2,03 mètres.	
avant ↔ après	*tier 1*
o: Elle n'est pas due avant le septième jour qui suit celui de l'accident, sauf dans le cas prévu au troisième alinéa de l'article 57.	
s′: Elle n'est pas due **après** le septième jour qui suit celui de l'accident, sauf dans le cas prévu au troisième alinéa de l'article 57.	
tous les → certains	*tier 1*
o: Le paiement par la Société lui cède tous les droits du réclamant sans restriction.	
s′: Le paiement par la Société lui cède **certains** droits du réclamant sans restriction.	
assureur → assuré	*tier 1*
o: L'assureur émet l'attestation d'assurance au plus tard dans les vingt et un jours de la demande d'assurance.	
s′: **L'assuré** émet l'attestation d'assurance au plus tard dans les vingt et un jours de la demande d'assurance.	
sauf → y compris	*tier 1*
o: Deux cyclistes sont autorisés à circuler côte à côte sur une vélorue, sauf s'ils circulent à contresens.	
s′: Deux cyclistes sont autorisés à circuler côte à côte sur une vélorue, **y compris** s'ils circulent à contresens.	

3.2. Force-Preserving Controls

We build two control sets on the LEXFLIP source sentences themselves, so that every comparison with the legal edit is paired by sentence.

Neutral edits. A neutral edit keeps the overlap of LEXFLIP and leaves legal force unchanged. Each applies one substitution that Quebec statutory drafting treats as equivalent.

- A subordinator: *lorsque → quand*.
- A connective adverb: *toutefois → cependant*, *en outre → de plus*.
- Self-reference: *le présent article → cet article*.
- A referential phrase: *en vertu de → aux termes de*, *conformément à → selon*.
- A numeral written out: *30 jours → trente jours*.
- A rewrite that touches an obligation or prohibition marker and keeps its force: *est tenu de → doit*, *nul ne → personne ne*.

The last kind is the hardest test of whether a metric reacts to a modal token or to the force that the token carries. A neutral edit applies to 155 of the 373 sources. The mean token Jaccard is 0.92, against 0.93 for LEXFLIP, and every edit passes the same well-formedness check.

Paraphrases. A paraphrase changes the wording a lot and leaves legal force unchanged. This is what a real simplifier produces. Llama-3.3-70B-Instruct rewrote each source once in plain French, at temperature 0. The instruction required it to keep the parties, modality, conditions, exceptions, deadlines, amounts and cross-references exactly, and to change the wording as much as possible. We keep a rewrite only if it meets three conditions. It passes the well-formedness check, keeps every number of the source, and shares at most 60% of its tokens with the source. 297 of the 373 rewrites pass,

with a mean token Jaccard of 0.35. Llama is also one of our judges, so its own scores on this cell may favour its own wording. The other judge and the untrained metrics do not have this exposure. Whether a paraphrase really keeps legal force is itself a legal judgment, so the expert audit below includes a sample of these items.

3.3. Label Audit

We audited the definitional labels of the legal edits and of both controls on a stratified sample of 200 items. The sample holds 112 LEXFLIP items and 44 items from each control set. It takes at least six items per rule, or all items where a rule has fewer. Each item appears with the full article it comes from, so that cross-references and defined terms are available. The annotator does not see the rule or the cell, and the items are shuffled. Each item has four questions.

1. Does the edit change the legal effect?
2. If it does, does it reverse the rule or alter its scope?
3. How severe is the change for a person who relies on the edited text?
4. Is the edited sentence acceptable statutory French?

One Quebec jurist labelled all 200 items blind, reading each item beside its source article and answering the four questions. A single annotator gives no measure of agreement between jurists. We therefore read the audit as an expert check on the labels and not as a full validation. We release the blind workbook, the labelling interface and the answer key so that further jurists can extend it. Section 4.4 presents the results.

3.4. Scorers Evaluated

We administer only metrics that handle French, because scoring an English-only metric on French confounds coverage with quality. Table 3 names the three families.

- BERTScore [31] over CamemBERTv2 and FlauBERT, in F1 and recall-only variants. Recall targets omission.
- Four sentence-embedding cosines: LaBSE, multilingual E5-base, paraphrase-multilingual-mpnet and Sentence-CamemBERT.
- Bidirectional natural language inference with mDeBERTa-XNLI [32]. A failure of $o \Rightarrow s$ signals hallucination, and a failure of $s \Rightarrow o$ signals omission. These are the two most frequent categories of the legal error taxonomy.

We add token Jaccard and the surface features of R3.

3.5. The FRJUDGE Corpus and Its Reconstruction

The diagnostic answers R4. We answer the other three requirements on FRJUDGE [4], and then ask whether the two kinds of evidence agree. FRJUDGE holds 297 insurance clauses that `gpt-4-turbo-2024-04-09` simplified and that five law students rated for legal meaning on a scale of 1 to 10. The public release drops annotator identity, which makes R1 impossible downstream. We therefore rebuild the corpus from the raw Prodigy export. The rebuild recovers the five annotators (pseudonymised as A–E) and reproduces the published pairwise agreement of 25.96%. The same export records the source document of each clause, which the public release also drops. Section 4.9 uses it to build a document-grouped split.

We did not obtain this export privately. The FRJUDGE authors distribute it in their own public repository, beside the released corpus and under the same open licence. It records the annotators' first names, which we never use. Our loader replaces them with stable pseudonyms on reading, the copy in our repository is pseudonymised, and we reported the names to the corpus authors.

The splits have 178, 30 and 89 pairs for training, development and test. We draw them under ten seeds for the unsupervised comparison and under five for the trained models. We fit the isotonic calibration of R2 on the training split alone, never on the split that a number comes from.

3.6. Prompted Judges

A prompted model that receives the annotators' rubric is the natural competitor to a fine-tuned encoder of 112M parameters. Legal LLM-as-a-judge protocols are also an active line of work [21]. We score each pair with `deepseek-chat` under the FRJUDGE scale. This is a ten-point judgment that deducts one point per identified legal error, as the corpus annotators did [4]. The published description does not give the annotators' instructions word for word, so our prompt is a reconstruction. Each pair goes in its own request, so the judge never sees the probe condition. We draw $K = 5$ samples at temperature 1 and average them.

We compare three prompt wordings. The first is the FRJUDGE rubric in French. The second is the same rubric in English over the same French text. The third is a bare instruction without the four-type error taxonomy. As a capability control, we run a reasoning model (`deepseek-reasoner`) under the same rubric on the same items. Table 10 lists every configuration with its prompt, model, number of samples, item set and calibration. It also names the headline configuration that the rest of the article quotes. Table 11 gives the prompts.

Hosted models change behind a fixed name, so we record what we can. `deepseek-chat` and `deepseek-reasoner` are the provider's model aliases. We drew the responses behind the original experiments no later than 3 September 2026. We drew the responses for the controls added in this version on 16 October 2026. Every response is cached, so every number can be recomputed without the API. Across all configurations, redraws and controls, the DeepSeek judges received 21,275 requests, at an estimated cost of $2.08.

A judge from one model family cannot show that a finding concerns judges in general rather than that family. We therefore repeat the headline configuration, the order control and the force-preserving controls with a second judge. It is an open-weight model from a different family: Llama-3.3-70B-Instruct with 4-bit AWQ weights, served with vLLM on one NVIDIA A100 80GB GPU. It receives the same prompts, with $K = 5$ and temperature 1. Its replies are parsed from the prompt's JSON instruction, as for the reasoning model, because grammar-constrained decoding failed with this model. Finally, we test whether a judge's treatment of an edit depends on which sentence it sees as the original. We score every LEXFLIP edit a second time with the two sentences exchanged.

3.7. Trained Metric Variants

The protocol so far audits scorers that already exist. It also has two consequences for how to fit a new scorer, and we test both. The first follows from R1. The gold label is the mean of five ratings whose median spread is 7 points. A scalar regressor fitted to that mean must predict a quantity that no annotator asserted, and the loss rewards a prediction near the centre. The second follows from

R4. If a diagnostic identifies a deficiency, the obvious response is to train against it.

The seven configurations share an encoder (CamemBERTv2-base), the splits, the schedule and the seeds. The first five differ only in the target and the loss. The two augmented configurations (**DA** and **DA+LexFlip**) keep the scalar objective and change the training data.

- **Scalar**, the conventional objective: mean squared error against the mean rating.
- **Distributional**: a ten-way head trained with KL divergence against the empirical rating histogram, after Uma et al. [33] and Peterson et al. [34]. The reported score is the expectation of the distribution, so it stays comparable. The model also exposes the spread.
- **Annotator-aware**: five regression heads, one per annotator, averaged at inference. The model can then represent the lenient and strict populations of Section 4.5 separately instead of averaging them away.
- **Quantile**: a pinball loss [35] at $\tau = 0.25$. The asymmetry is deliberate. A metric that *overshoots* the human rating accepts bad simplifications, and a metric that undershoots is only strict. In a legal setting these errors do not cost the same, and a quantile objective puts that preference into the loss.
- **Multi-task**: the scalar head plus an auxiliary head for the annotators' characterisation of the clause, trained against their majority vote. The vote covers 17 of the rubric's 18 classes, because the eighteenth never has a majority. FRJUDGE collects these labels and then discards them. The published rubric has annotators characterise a clause *before* they score it, so the label plausibly carries information about the score.
- **DA**: the scalar objective, with the identical/unrelated augmentation in current use added to the training mixture.
- **DA+LexFlip**: **DA** plus minimally edited negatives, which the rules of Section 3.1 generate from FRJUDGE originals. They are disjoint from the diagnostic's own sentences.

We compute correlation and RMSE *only* on the human-annotated test split, never on a split that contains augmentation. This matters. Identical pairs (label 10) and unrelated pairs (label 1) in an evaluation set inflate the label variance at the extremes. That raises Pearson r for every metric without any improvement in judgment. A table that mixes the two shows a clear signature: the r and the RMSE of a metric improve and worsen together. Here the augmentation affects training only, and we report the three diagnostic regimes separately as pass rates.

The augmentation is sized to the training split, which has 178 human pairs. **DA** adds 178 identical pairs (label 10) and 178 unrelated pairs (label 1). The mixture therefore has two augmented items per human item. **DA+LexFlip** adds 178 minimally edited negatives (label 1), for three augmented items per human item. The unrelated pairs come from the same two statutes as the diagnostic's unrelated probes. The statutes are absent from FRJUDGE, but not from these two training mixtures. In the main grid the identical pairs and the edited negatives came from all 297 FRJUDGE originals, test items included. The in-distribution experiment of Section 4.8 draws them from the training split alone.

A trained model passes the identical-pair check on an item when it predicts at least 9.9 on the 1–10 scale. It passes the unrelated-pair check when it predicts at most 1.1. This is the strict reading of "maximum" and "minimum" that the checks in current use imply. We also report the looser criteria of 9 and 2. For trained models, the LEXFLIP discrimination counts an item as correct only when the identical pair scores at least one point above the edited pair.

3.8. Statistical Procedures

The unsupervised metrics and the length feature correlate with the *same* human label on the *same* 297 items, and with each other. A two-sample test on Fisher-transformed correlations would therefore be anticonservative. We use the Williams test [25, 26], which corrects for this dependence, and we apply Holm's step-down correction across the ten tests. We compute power for the same dependent design, by simulation at the median observed correlation between a metric and the length feature ($r = 0.35$). On a 89-item test split, a reliable distinction from a metric at $r = 0.46$ needs $r \leq 0.14$, with 80% power.

The 297 items of FRJUDGE come from only 21 source forms, and items from one form are not independent. We therefore report two intervals for corpus correlations: one from a bootstrap over items, and one from a cluster bootstrap that resamples source forms. Margins carry percentile bootstrap intervals. These resample source sentences, keeping the identical and edited scores of each sentence together, and they resample unrelated probes independently. Every bootstrap uses 2,000 draws.

We report trained models as means and standard deviations over five seeds, and unsupervised comparisons over ten. We treat any difference smaller than that spread as unresolved. A seed fixes both the split and the initialisation. We therefore also rerun the scalar baseline with the split fixed and the initialisation varied, and the reverse. This separates the two sources of variance.

A laptop produces every number for the untrained metrics, the trained models and the DeepSeek judges, end to end. The largest trained model is CamemBERTv2-base (112M parameters). The open-weight judge is the one exception and needs one 80GB GPU. Training runs use Apple MPS kernels, which are not bit-wise deterministic. A fixed seed therefore reproduces a run only approximately. Repeat runs of the scalar configuration at seed 42 differ in test-set r by several hundredths, which is comparable to the spread across seeds. A reproduction on CUDA should give tighter agreement and narrower error bars.

3.9. Use of Generative AI

Generative AI has two distinct roles in this work. We separate them because only one of them is a result. As an *object of study*, `deepseek-chat`, `deepseek-reasoner` and Llama-3.3-70B-Instruct are scored as prompted judges under the protocol of Section 3.6. Llama-3.3-70B-Instruct also generated the paraphrase control set of Section 3.2, and `gpt-4-turbo-2024-04-09` produced the simplifications in FRJUDGE before this work began. Separately, the author used a large language model assistant to rephrase passages of the manuscript for clarity. No AI system is an author. The author designed the study and verified every reported number against the released result files. The author takes full responsibility for the content of this article, including any part produced with the help of such a tool.

Table 3. LEXFLIP. *ident.* and *unrel.* are the mean identical-pair and unrelated-pair scores. We min–max normalise over all 3×373 item scores of each metric, so these means need not equal 1 and 0. *discrim.* is the share of items with $m(s,s) > m(s,s')$ strictly. *ties* is the share with $m(s,s) = m(s,s')$, and ties count as misses. *Margin* is the share of the identical-to-unrelated range spent on the legal edit, with a 95% bootstrap interval. The last two columns give it separately for the 310 tier-1 and 63 tier-2 items.

Metric	ident.	unrel.	discrim.%	ties%	margin	95% CI	tier 1	tier 2
NLI-bidirectional (min)	0.784	0.010	93.3	0.0	0.670	[0.626, 0.721]	0.760	0.228
NLI-bwd (no omission)	0.784	0.042	77.2	0.0	0.473	[0.418, 0.532]	0.554	0.075
NLI-fwd (no hallucination)	0.784	0.043	77.7	0.0	0.424	[0.375, 0.476]	0.472	0.189
Judge: DeepSeek-chat (K=5)	1.000	0.006	86.3	13.7	0.370	[0.336, 0.402]	0.413	0.158
Judge: Llama-3.3-70B (K=5)	1.000	0.004	90.3	9.7	0.106	[0.098, 0.116]	0.112	0.078
surface: token Jaccard	1.000	0.089	99.2	0.8	0.079	[0.075, 0.083]	0.082	0.065
LaBSE	1.000	0.292	100.0	0.0	0.039	[0.036, 0.043]	0.042	0.027
BERTScore-FlauBERT	1.000	0.393	100.0	0.0	0.035	[0.032, 0.038]	0.035	0.034
mE5-base	1.000	0.266	100.0	0.0	0.034	[0.031, 0.036]	0.038	0.012
Para-mUSE-mpnet	1.000	0.312	100.0	0.0	0.028	[0.024, 0.034]	0.033	0.005
Sentence-CamemBERT	1.000	0.316	100.0	0.0	0.024	[0.021, 0.027]	0.026	0.015
BERTScore-CamemBERTv2-Recall	1.000	0.240	100.0	0.0	0.023	[0.021, 0.025]	0.023	0.020
BERTScore-CamemBERTv2	1.000	0.193	100.0	0.0	0.022	[0.021, 0.024]	0.023	0.021
surface: $-\lvert\lvert s\rvert - \lvert o\rvert\rvert$	1.000	0.718	11.3	88.7	0.011	[0.008, 0.014]	0.013	0.000

4. Results

4.1. Similarity Metrics Fail the Dissociation

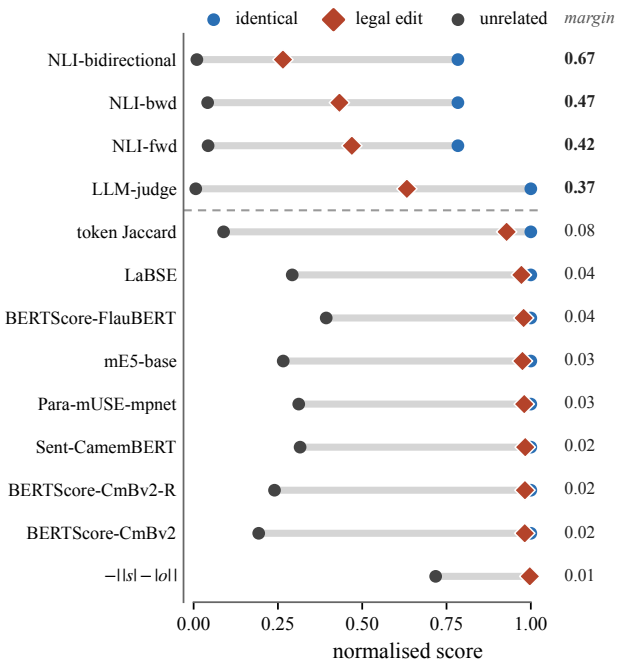
Every similarity-based metric fails, and it fails almost completely (Table 3). The seven embedding and BERTScore variants spend between 0.022 and 0.039 of their working range on an edit that changes the law. BERTScore over CamemBERTv2 places the edited sentence at 0.982. The original sits at 1.000 and an unrelated statute at 0.193. Token Jaccard, at 0.079, is in the same regime. This is the expected result: these metrics are overlap functions, as Section 2 predicts. Their discrimination rates do not help either. All seven rank the identical pair first on 100% of items, but by a margin too small to support any decision.

Bidirectional NLI does not fail. It spends 0.670 of its range on the edit (95% CI $[0.626, 0.721]$) and ranks 93.3% of items correctly. It also places the edited sentence nearer the unrelated pair than the identical one. The prompted judge spends 0.370 ($[0.336, 0.402]$). It ties the identical and the edited pair on 13.7% of items, mostly by giving both the maximum score. The intervals do not overlap between any two of the three groups.

The result does not depend on the probe details. We redrew the unrelated pairs 8 times, with overlap thresholds from 0.10 to 0.35. The NLI margin stays between 0.668 and 0.672, and every similarity metric stays between 0.021 and 0.040. The result also holds on each tier separately. On tier 2, every margin is smaller: NLI falls from 0.760 to 0.228 and the judge to 0.158. Tier-2 edits change scope rather than reverse a rule, so this is the expected direction. The length feature's near-zero margin holds by construction, because a one-word substitution hardly changes length. We report it as a check on the harness, not as evidence. Figure 2 shows the same result. For every similarity metric the edited sentence sits hard against the identical pair, at the wrong end of the metric's own range.

The existing checks would have excluded it. NLI's identical score sits at 0.784, and this is not a normalisation artefact. In raw terms mDeBERTa gives a sentence paired with itself a mean entailment probability of 0.780. Only 1.3% of items clear the 99% bar that the identical-pair convention requires, against 100% for every BERTScore and embedding metric. The convention would therefore *disqualify* the metric that best tracks legal force. Every overlap function saturates on identical input by construction, so saturation is easy to build. Report it, but do not filter on it.

Figure 2. LEXFLIP. For each metric, the grey bar is its full working range. It spans the score on an unrelated pair (dark circle) to the score on an identical pair (blue circle). The red diamond is where it places a sentence whose legal force a single word has changed. A metric that measured legal meaning would put the diamond well to the left. Every similarity-based metric puts it at the right, hard against the identical pair. Only the four scorers above the dashed rule, the three NLI variants and the prompted judge, move it appreciably. Metric names are abbreviated. Table 3 gives them in full, and the margin column is repeated at the right here.



4.2. Which Edits Are Detected

An average over all thirteen scorers hides the informative result, because ten of the thirteen read overlap. Table 4 therefore reports each rule for each scorer family. The similarity family spends at most 0.05 of its range on any rule. The two other families differ by rule, and the differences are legally informative.

Table 4. LEXFLIP margin by rule and scorer family, with tiers marked. *Similarity* is the mean margin of the seven embedding and BERTScore metrics (their range in the last row). *NLI-bi* is bidirectional NLI, and the judge columns use the headline configuration. A margin of 1 would mean the scorer treats the edited sentence as it treats an unrelated one.

Rule	n	similarity	NLI-bi	DeepSeek	Llama
Tier 1					
peut → *doit*	111	0.027	0.703	0.221	0.088
doit → *peut*	82	0.029	0.981	0.590	0.110
tous les → *certains*	42	0.038	0.574	0.137	0.107
drop *ne . . . pas*	21	0.050	0.985	0.984	0.222
amount ×10	21	0.045	0.761	0.403	0.154
assureur → *assuré*	11	0.020	0.119	0.581	0.112
sauf (si) → *si, y compris*	10	0.036	0.755	0.754	0.112
avant ↔ *après*	9	0.021	0.846	0.567	0.112
assuré → *assureur*	3	0.019	-0.033	0.395	0.037
Tier 2					
et → *ou*	27	0.021	0.262	0.133	0.093
ou → *et*	26	0.015	0.258	0.221	0.062
automobile ↔ *véhicule*	10	0.026	0.054	0.065	0.083
All	373	0.022–0.039	0.670	0.370	0.106

- NLI is close to the ideal on dropped negation (0.985) and on *doit* → *peut* (0.981). It is strong on quantum, time and exception edits.
- NLI is weak where the edit changes *who* the rule concerns. It spends 0.119 on *assureur* → *assuré*, 0.054 on the vehicle class, and about 0.26 on the connectives.
- The DeepSeek judge is the reverse on parties. It spends 0.581 on *assureur* → *assuré*, but only 0.137 on *tous les* → *certains* and 0.221 on *peut* → *doit*.
- Both families treat the two directions of the modality rule differently: NLI spends 0.981 and 0.703, the judge 0.590 and 0.221. Section 4.7 tests the judge's asymmetry directly.

Several cells rest on few items. *Assuré* → *assureur* has three, and time, exception and party have nine to eleven each. The ordering of rules is therefore descriptive. Two observations are durable: the similarity family reacts to no rule, and NLI and the judge fail on different rules. A legal metric built from either would inherit a specific blind spot.

4.3. Force-Preserving Edits

Table 5 gives the second half of the dissociation. For each scorer, it reports the LEXFLIP margin on the sources that carry a control, the drop on each control, and the selectivity.

Neutral edits. The similarity metrics drop by 0.002 to 0.034 of their range on a neutral edit. That is as much as they drop on a legal edit, so their selectivity is −0.005 to 0.030. They react to a change of wording, and the change of law adds nothing. Bidirectional NLI does not drop at all (drop −0.021, 95% CI $[-0.042, 0.001]$), so its selectivity is 0.646 ($[0.57, 0.71]$). The DeepSeek judge does not drop either (drop 0.000, selectivity 0.352). Llama does not drop (drop 0.001), but its margin is small, so its selectivity is only 0.104. The hardest neutral edits touch a prohibition marker: *nul ne* becomes *personne ne*. On these, NLI scores the edited pair slightly *above* the identical pair (drop −0.146). For these two families, the large

Table 5. Specificity. LEXFLIP *margin* is computed on the sources that carry a neutral edit. *Drop* is the share of the same identical-to-unrelated range lost on a force-preserving edit (ideal 0), and *select.* is margin minus drop on the same sources (higher is better). Neutral edits keep the overlap of LEXFLIP. Paraphrases have low overlap.

Metric	LEXFLIP margin	neutral edit drop	neutral edit select.	paraphrase drop	paraphrase select.
NLI-bidirectional (min)	0.625	-0.021	0.646	0.056	0.649
NLI-bwd (no omission)	0.451	-0.047	0.498	0.004	0.504
NLI-fwd (no hallucination)	0.390	-0.056	0.446	-0.124	0.569
Judge: DeepSeek-chat (K=5)	0.353	0.000	0.352	0.174	0.178
Judge: Llama-3.3-70B (K=5)	0.104	0.001	0.104	0.028	0.078
BERTScore-CamemBERTv2	0.018	0.022	-0.004	0.466	-0.442
BERTScore-CamemBERTv2-Recall	0.018	0.023	-0.005	0.485	-0.461
BERTScore-FlauBERT	0.029	0.034	-0.005	0.562	-0.525
LaBSE	0.034	0.004	0.030	0.190	-0.148
Sentence-CamemBERT	0.022	0.006	0.016	0.214	-0.189
Para-mUSE-mpnet	0.021	0.002	0.018	0.123	-0.092
mE5-base	0.030	0.007	0.023	0.311	-0.275

margin is therefore not a reaction to any edit. It is a reaction to the edit that changes the law.

Paraphrases. The label audit (Section 4.4) found that only part of the paraphrase cell keeps legal force, so this cell is read with that caveat. On the paraphrases, the order reverses. The similarity metrics drop by 0.123 to 0.562 of their range, more than they drop on a legal edit. Their selectivity is therefore negative (−0.525 to −0.092). They penalise a rewrite more than a change of law. Bidirectional NLI drops by only 0.056 (95% CI $[0.007, 0.105]$), and its selectivity stays at 0.649. NLI therefore does not reject a low-overlap rewrite merely because the wording changed. The DeepSeek judge drops by 0.174, so it penalises rewording to some degree. Llama drops by 0.028, but Llama wrote the paraphrases and may favour its own wording. Because part of this cell changes legal force, these drops mix a penalty for rewording with a correct response to a change of law.

4.4. What the Label Audit Shows

The jurist of Section 3.3 agrees with the definitional label on 81 of 85 tier-1 items and on 21 of 27 tier-2 items. Three of the four tier-1 disagreements are a negated modal: *ne peut* becomes *ne doit*, and both still state a prohibition. The fourth is a generator error. The tier-2 disagreements are connectives, where *et* and *ou* in a list of applicable articles often leave the rule unchanged. This confirms the concern that connective edits are weak labels. Of the 102 edits judged to change legal force, only 26 reverse the rule. The others change its scope, which is why we speak of a change of force and not of a reversal.

Three further findings bear on how to read the results. First, 33 of the 112 edited sentences were judged unidiomatic or ungrammatical, against 0 of the 88 controls. The scope and vehicle-class rules account for most of them, so the well-formedness check was weaker than intended. Second, the annotation exposed generator errors. A search of all 373 items finds 12 of them. Seven vehicle-class edits produce *une automobile routier*. Two party edits fire on the verb *s'assurer* (*s'être assuré* becomes *s'être assureur*). Two time edits fire on a word that is not temporal (the spatial *avant*, and *ci-après*). One modality edit fires inside *qu'il peut le faire*. Removing these items moves no margin by more than 0.015. Third, the neutral edits hold up: all 44 sampled neutral edits were judged to keep legal force. The paraphrases do not. Only 16 of 44 were judged to keep legal

Table 6. Krippendorff's α on FRJUDGE. Legal meaning is an ordinal ten-point scale, for which the nominal coefficient is not the appropriate measure. *prev.* is the value reported by Beauchemin et al. [4].

Dimension	Krippendorff's α		Reported
	nominal	appropriate	prev.
Simplicity level	0.183	0.183	0.18
Characterization	0.552	0.552	0.55
Legal meaning	0.104	**0.325**	0.10

force, 19 were judged to change it, and 9 were uncertain. One paraphrase replaces *responsabilité solidaire* with *conjointe*, a different liability regime under Quebec civil law. The paraphrase cell is therefore not a clean force-preserving control, and a drop on it is partly a correct response.

4.5. Disagreement and the Human Ceiling

Krippendorff's α for legal meaning is 0.104 under the *nominal* coefficient, which is the one usually reported for this corpus. It is 0.325 under the *ordinal* coefficient, which suits an ordered scale [36]. Table 6 gives all three annotation dimensions, and our nominal values reproduce the published ones. We compute both coefficients with the same library on the same reliability matrix, so only the distance function explains the difference between 0.104 and 0.325.

The disagreement that remains after this correction is structural. The annotators form two stable populations: B, C and D average 7.61, and A and E average 4.34. 63% of pairs span at least 6 points (Figure 3). The mean of the five ratings has a standard deviation of 2.40, and a regressor that predicts the middle does well on such a target. Correlating each annotator with the mean of the other four gives a ceiling of 0.597 (RMSE 3.27). The held-out annotators range from 0.524 to 0.680 (Table 7). A metric that exceeds this ceiling is not superhuman.A metric that exceeds this ceiling is not superhuman. The bound for predicting the five-rater mean is that mean's own reliability, 0.811 by Spearman–Brown, so a metric can approach $\sqrt{0.811} = 0.90$.

The ceiling above uses all 297 items, while metric correlations use 89-item test splits and the five-rater mean. Those two numbers are not directly comparable. We therefore also compute both on the same terms. On each of the ten test splits, we correlate each held-out annotator with the mean of the other four. We also correlate each calibrated metric with those same four-rater means. On this basis the ceiling is 0.599. The surface ridge reaches 0.599, the length feature 0.628, the prompted judge 0.738, and the best semantic metric (BERTScore over FlauBERT) 0.463. The like-for-like comparison therefore confirms both statements below: the ridge sits at the ceiling, and the judge exceeds it.

4.6. Identical Supervision, and a Trivial Control

Calibration removes most of the RMSE gap that uncalibrated comparisons record (Table 8). The metrics were not as far from human judgment as such tables suggest. They were on a different scale. A ridge over word counts and token overlap reaches $r = 0.62$. This is at the human ceiling and above every semantic metric we test, of which the best reaches $r = 0.482$. Only two scorers beat the ridge, and neither is semantic: the prompted judge below, and the bare length difference at $r = 0.641$.

Table 7. Leave-one-annotator-out ceiling on FRJUDGE ($n = 297$). A single expert predicts the consensus of the other four at $r = 0.597$, and the best-agreeing pair of annotators reaches $r = 0.606$.

Held-out	r (95% CI)	ρ	RMSE
A	0.524 [0.44, 0.60]	0.551	3.93
B	0.569 [0.48, 0.65]	0.586	3.05
C	0.680 [0.60, 0.75]	0.725	2.75
D	0.601 [0.52, 0.67]	0.557	3.08
E	0.612 [0.55, 0.67]	0.679	3.56
Mean (ceiling)	**0.597**	0.620	3.27
Best pair (C-D)	0.606	–	–
Mean pairwise	0.462	–	–

Under the Williams test, each of the ten unsupervised neural metrics is significantly *worse* than the length feature (t between 2.61 and 6.33, Table 9). All ten comparisons survive Holm's correction for ten tests (largest adjusted $p = 0.010$). The Williams test assumes independent items, and FRJUDGE items cluster in 21 source forms. A cluster bootstrap over forms is the stricter test. Under it, the length feature's lead stays resolved for 9 of the ten metrics. It is not resolved for BERTScore over FlauBERT (difference 0.129, 95% CI $[-0.026, 0.289]$) or for BERTScore-CamemBERTv2 recall. The length feature's own correlation has a cluster interval of $[0.55, 0.66]$, against $[0.54, 0.68]$ over items. We therefore claim the ordering for most metrics, not for the two best ones.

The result says less about the corpus than about what the *annotation* rewards. The rubric reduces the score once per identified error, and the most frequent error type, omission, goes with a shorter simplification.

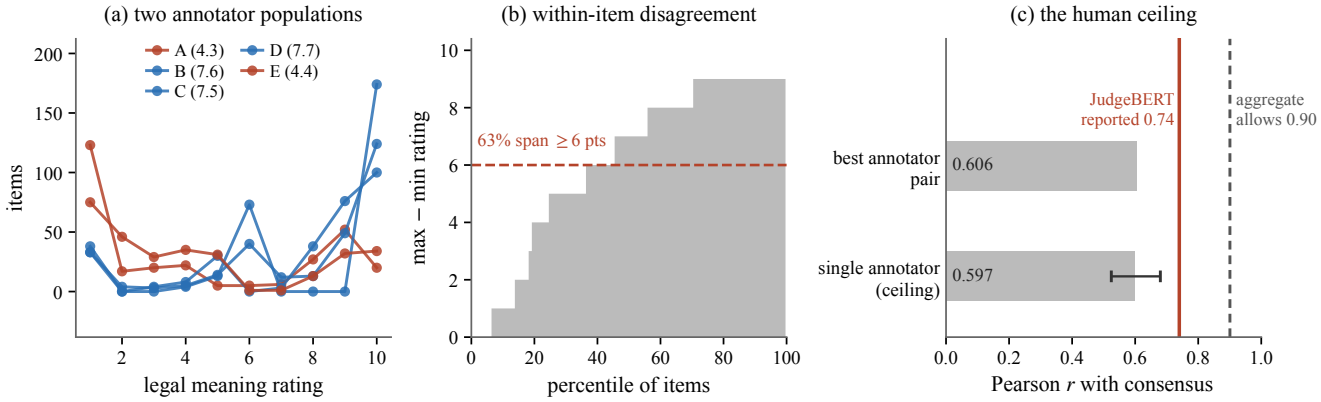
4.7. The Prompted Judges

Table 10 lists every configuration. The headline configuration (the French rubric, `deepseek-chat`, $K = 5$, all items, calibrated) reaches $r = 0.755_{\pm 0.054}$ under R2. This is above the length feature and above our ceiling, and an independent redraw gave 0.726. On LEXFLIP, the identical pair scores 10.00 and the unrelated pair 1.06. It is therefore flawless on the two checks that overlap can satisfy. It then gives a clause whose legal force has changed 6.69 out of ten, a margin of 0.370. Margins and correlations from the subsample rows are not comparable with these full-set values.

The rubric, not the model, limits the margin. With the model fixed, the margin rises from 0.421 under the rubric-faithful prompt to 0.687 under a bare instruction without the four-type taxonomy. A redraw moves it by 0.002. The correlation rises too, from 0.687 to 0.758. The rubric reduces the score *once per identified error*. The judge therefore counts a change of legal force as one incoherence, and the penalty stays near the top of the scale. A reasoning model does not help. Under the same rubric and items, `deepseek-reasoner` gives $r = 0.580$ against 0.619, and a margin of 0.320 against 0.425, at matched sampling. The shortfall is not a matter of the model thinking harder.

A second model family. Llama-3.3-70B-Instruct under the headline configuration reaches $r = 0.709$ (± 0.043) on FRJUDGE. On LEXFLIP it scores the identical pair at 10.00, the edited pair at 9.05 and the unrelated pair at 1.04. Its margin is 0.106 (Table 3). The two families agree on the endpoints and differ on the edit. Both give every identical pair the top score and almost every unrelated pair a

Figure 3. Disagreement in FRJUDGE. (a) The five annotators form two populations. B, C and D (blue) rate legal preservation about three points higher than A and E (red) across the whole corpus. (b) Sorted within-item range. The median item spans 7 points of a ten-point scale. (c) A single annotator predicts the consensus of the other four at $r = 0.597$ (bar). The whiskers give the range over the five held-out annotators. The best-agreeing pair reaches $r = 0.606$.



score near the bottom. Llama, however, scores the edited pair close to the identical pair. Its margin is less than a third of the DeepSeek margin, although its correlation with the human ratings stays high. Llama is therefore the clearest single case of the dissociation. It tracks the human ratings closely and barely reacts to a change in the law.

The modality asymmetry. On the full set, DeepSeek gives *doit* → *peut* a mean of 4.72 and *peut* → *doit* a mean of 8.02. The gap holds in every configuration, from 3.24 to 4.03. It is tempting to read this gap as the judge tracking legal severity. That reading does not survive two objections. First, whether a change from obligation to discretion is more or less severe depends on whose position one takes. A discretion is a gain for the party it frees and a loss for the party it protected. Second, the gap could follow the direction of change *as presented* rather than anything legal. We tested the second objection directly. We scored every edit again with the two sentences exchanged, so that a *doit* → *peut* item reads as *peut* → *doit*. Under the exchange, the *doit*-source items score 4.80 and the *peut*-source items 6.00. The gap falls from 3.30 to 1.20 points. It does not reverse. Part of the asymmetry follows the order of presentation. The other part follows the items: sentences that state an obligation keep a low score whichever version comes first. Llama shows a much smaller gap: 0.20 points in the original order and 0.36 under the exchange. It scores almost every edit near the top of the scale. Its gap does not reverse either. We therefore report the

Table 8. Calibrated comparison on the FRJUDGE test split (89 items), mean over 10 seeds. RMSE_{raw} is the decimal-scaling protocol in current use. RMSE_{cal} fits an isotonic map on the training split. We compute r and ρ after calibration. The map is monotone, so it leaves ρ almost unchanged (at most 0.014). It shifts r by up to 0.074.

Metric	r	ρ	RMSE_{raw}	RMSE_{cal}	over%
Unsupervised, French-capable					
BERTScore-CamemBERTv2	$0.291_{\pm 0.09}$	0.326	2.62	2.36	49.3
BERTScore-CamemBERTv2-Recall	$0.352_{\pm 0.12}$	0.398	2.59	2.30	47.2
BERTScore-FlauBERT	$0.482_{\pm 0.08}$	0.459	2.16	2.12	49.4
LaBSE	$0.409_{\pm 0.06}$	0.402	2.33	2.21	47.2
Sentence-CamemBERT	$0.296_{\pm 0.05}$	0.287	2.68	2.31	49.3
Para-mUSE-mpnet	$0.252_{\pm 0.08}$	0.266	2.88	2.35	47.2
mE5-base	$0.358_{\pm 0.08}$	0.356	2.52	2.26	48.0
NLI-fwd (no hallucination)	$0.368_{\pm 0.06}$	0.352	3.85	2.25	49.3
NLI-bwd (no omission)	$0.340_{\pm 0.09}$	0.355	3.70	2.28	46.9
NLI-bidirectional (min)	$0.395_{\pm 0.07}$	0.405	3.74	2.22	46.6
Trivial surface features					
$-\lvert\lvert s\rvert - \lvert o\rvert\rvert$ (length difference)	$0.641_{\pm 0.04}$	0.624	3.25	1.85	47.0
Token Jaccard	$0.303_{\pm 0.06}$	0.331	3.34	2.34	48.0
Length ratio	$0.580_{\pm 0.05}$	0.560	3.43	1.97	49.1
Surface-Ridge (10 features, supervised)	$0.621_{\pm 0.05}$	0.588	1.89	1.89	45.8
Prompted LLM judge					
LLM-judge (deepseek-chat, k=5)	$0.755_{\pm 0.05}$	0.753	2.93	1.57	43.9
Human ceiling (one annotator)	**0.597**	0.620	–	3.27	–

Table 9. Williams tests against the trivial length baseline $\ell = -||s| - |o||$. Over all 297 items, ℓ reaches $r = 0.613$ with the human label h. $r(m,\ell)$ is each metric's correlation with the length feature itself, the dependence the test corrects for. Positive t favours ℓ. p_{Holm} is adjusted for the ten tests. The last column is the 95% cluster-bootstrap interval, over the 21 source forms, for $r(\ell,h) - r(m,h)$.

Neural metric m	$r(m,h)$	t	p	p_{Holm}	cluster CI
BERTScore-CamemBERTv2	0.344	5.05	<0.001	<0.001	[0.038, 0.397]
BERTScore-CamemBERTv2-Recall	0.396	4.43	<0.001	<0.001	[0.009, 0.318]
BERTScore-FlauBERT	0.484	2.61	0.010	0.010	[-0.026, 0.289]
LaBSE	0.424	3.66	<0.001	<0.001	[0.040, 0.269]
Sentence-CamemBERT	0.222	6.33	<0.001	<0.001	[0.041, 0.472]
Para-mUSE-mpnet	0.225	6.32	<0.001	<0.001	[0.178, 0.513]
mE5-base	0.318	5.40	<0.001	<0.001	[0.101, 0.426]
NLI-fwd (no hallucination)	0.320	5.66	<0.001	<0.001	[0.133, 0.462]
NLI-bwd (no omission)	0.307	5.36	<0.001	<0.001	[0.177, 0.396]
NLI-bidirectional (min)	0.365	4.68	<0.001	<0.001	[0.108, 0.335]

asymmetry as a property of these judges that a deployment must measure. We do not interpret it as legal severity.

The judge as a sixth annotator. The judge rates on the annotators' scale, so we can place it inside the panel and not only beside the metrics. Its mean rating is 9.11. The human panel spans 4.34 to 7.61, so the judge is more lenient than any human and far less dispersed. Yet its mean correlation with the five annotators is 0.544, higher than the mean human-to-human correlation of 0.462. Adding it as a sixth coder nonetheless *lowers* ordinal α from 0.325 to 0.300. It tracks the consensus without belonging to the distribution. It is far more consistent with its own five samples than the humans are with each other ($\alpha = 0.689$ against 0.325). Averaging the samples matters: correlation with the human mean rises from 0.611 at $K = 1$ to 0.719 at $K = 5$. Its explanations show the same pattern. On identical pairs it reports an error in 0.0% of samples. On LEXFLIP it reports some error in 78.1%, and it names *incohérence*, the correct type for this edit, in 54.6%.

Combining the judge with NLI. We tried six rules for combining the judge with bidirectional NLI. Every calibration and every weight was fitted on the FRJUDGE training split by correlation alone, so LEXFLIP never entered a fit. No rule beats both parents on both axes. The best, a weighted blend at $w = 0.74$, reaches $r = 0.762$ and a margin of 0.574. Its correlation gain over the judge (0.007) is smaller than the variation between two redraws of the judge (0.029). Its margin stays below that of NLI alone (0.670). We report this as a negative result and do not propose the blend as a metric.

4.8. What Training Against the Protocol Buys

Table 12 reports the grid of Section 3.7. The first result is negative. Five configurations differ only in target and loss. None of them moves the correlation by more than the scalar baseline's own spread across seeds (± 0.082). That spread is itself far smaller than the difference of about a quarter of a correlation point that an 89-item split can resolve. The two augmented configurations are the exception, and they lose correlation (see below). Most of the seed spread comes from initialisation. With the split fixed, the standard deviation of r across 5 initialisations is 0.115. With the initialisation fixed, it is 0.022 across 5 splits.

The differences that survive are in the other columns. The distributional head is much steadier than the scalar head (± 0.029 against ± 0.082 over the same five seeds). It reaches the best RMSE in the table (1.99) and about doubles the rank correlation ($\rho = 0.578$ against 0.280). A target that carries the shape of the rating distribution, and not only its mean, should have this effect. The quantile head does what it was asked to do. It overshoots the human label on 9.9% of test items, against 25.4% for the scalar head, the lowest rate of any model here. Its correlation is unchanged (0.553 against 0.542), but its RMSE rises from 2.48 to 3.28. A model trained at $\tau = 0.25$ predicts below the mean by design. A loss can therefore encode the risk asymmetry of a legal setting, at a measurable cost in RMSE.

Why the trained models fail the identical-pair check. Every model in Table 12 scores 0% on the identical-pair check. This includes the two augmented models, although their training mixture contains identical pairs. The augmented models pass the unrelated check on 77% and 69% of probes, and the other models on none. Two explanations are possible. Under the first, the identical probes are statutory sentences and the training identical pairs are FRJUDGE clauses. Passing would then require a change of source document. Under the second, a regressor trained toward the label mean rarely predicts 9.9 on any input, whatever its source. To separate the two, we retrained the scalar and augmented models with augmentation drawn from the training split only. We then tested them on identical pairs built from held-out FRJUDGE originals (Table 13). Neither explanation survives in its simple form. On held-out FRJUDGE originals, the scalar model scores identical pairs at 4.58 and unrelated pairs at 4.78, and no identical pair reaches either bar. A change of source document cannot explain this, because these pairs come from the training distribution. Compression toward the mean cannot explain it either, because a compressed model would still rank identical pairs above unrelated ones. The scalar model does not separate them at all. It appears to predict from properties of the clauses, not from the relation between them. The augmented models do separate the two endpoints (6.40 against 4.44 for DA). They still score an edited original as high as the identical pair (6.40), so their margin on held-out originals is 0.00.

The diagnostic shows the same pattern. DA+LEXFLIP, trained on minimally edited negatives, reaches a margin of 0.051 on the statutory probes, against 0.670 for untrained bidirectional NLI. Its negatives come from FRJUDGE originals and its probes from statutes. Table 13 also gives its margin on edits of held-out FRJUDGE originals. That margin is 0.02. The model fails on new items of the kind it trained on, so its failure is not only a transfer failure between corpora.

The augmented mixtures also show the clearest effect in the table. DA loses 0.350 of correlation against the scalar baseline, and DA+LEXFLIP loses 0.420, on five seeds out of five in both cases. DA varies by ± 0.254 across seeds and reaches $r = -0.188$ on one of them.

One column needs care. LEXFLIP false acceptance is the share of edited pairs that still score ≥ 7, so it depends on where a model puts its predictions overall. The distributional head's 69% reflects a head that scores high in general: its identical probes average 7.22. The 0% of the scalar heads reflects models that score low on everything, not models that reject the edit.

4.9. What Survives a Change of Document

A meta-evaluation that never changes the source document cannot separate legal sensitivity from familiarity with a form. A random split lets clauses from the same insurance form appear in both training and test, and insurance forms are highly templated. We therefore rerun the scalar baseline and the two augmented mixtures on a document-grouped split, in which no source document crosses the boundary. The grouped split matches the random split in size, pair for pair. The other four configurations differ from the

Table 10. Every prompted-judge configuration in this article. *Items* is *all* for the full FRJUDGE corpus and all 373 LEXFLIP probes. It is *sub* for the fixed 100-edit subsample, with its identical and unrelated probes. We ran the capability and prompt comparisons on this subsample to keep the reasoning model affordable. *Cal.* marks isotonic calibration under R2, fitted on each training split. The headline row is the configuration quoted elsewhere in the article. Rows on the subsample are comparable with each other, not with the full-set rows.

Configuration	prompt	model	K	items	cal.	r	margin
Headline	rubric, FR	deepseek-chat	5	all	yes	0.755	0.370
Redraw	rubric, FR	deepseek-chat	5	all	yes	0.726	0.372
Uncalibrated	rubric, FR	deepseek-chat	5	all	no	0.719	–
Single sample	rubric, FR	deepseek-chat	1	sub	yes	0.619	0.425
Reasoner	rubric, FR	deepseek-reasoner	1	sub	yes	0.580	0.320
Prompt v1	rubric, FR	deepseek-chat	2	sub	yes	0.687	0.421
Prompt v2	rubric, EN	deepseek-chat	2	sub	yes	0.727	0.573
Prompt v3	bare, FR	deepseek-chat	2	sub	yes	0.758	0.687
Second family	rubric, FR	Llama-3.3-70B	5	all	yes	0.709	0.106

baseline in what they predict, not in what they can exploit about a source form. They therefore face the same leakage.

The comparison does not resolve. The scalar baseline's correlation falls from 0.542 on the random split to 0.454 on the grouped one. That drop of 0.088 goes in the direction that leakage would predict, but it does not survive inspection. The per-seed differences are $+0.169$, -0.097, -0.416, -0.182 and $+0.086$. Two of the five seeds therefore *improve* under the harder split, and the grouped spread (± 0.143) is wider than the gap itself. The two augmented mixtures move by -0.002 and $+0.026$, which is to say not at all. As a control, the untrained NLI reference fits nothing and should not care how the corpus is split. It moves from 0.395 to 0.391. The two splits are therefore otherwise comparable, and the variance above belongs to the models, not to the split.

We therefore do not claim that document-level leakage inflates these correlations. Our claim is narrower and, we think, more useful to anyone who plans a successor corpus. FRJUDGE is too small and too concentrated to answer the question. Its 297 pairs come from only 21 source forms, and the three largest forms hold 71% of them. The largest form alone is 37% of the corpus. That is more than the 30% test quota, so the form always falls in training. The grouped test split therefore always comes from the 188 pairs that remain. At that size, the variation from seed to seed swamps the effect. A corpus that must support an out-of-domain claim needs its documents spread far more evenly. This is the part of the design we would change first.

4.10. Stratifying by Length Change

Table 11. The judge prompts. The headline configuration uses v1. Each pair is sent in its own request, K times, and the integer score is read from the JSON reply.

System (v1, v3)	Vous êtes juriste, spécialiste du droit québécois des assurances et de la rédaction législative. Vous évaluez si une reformulation simplifiée d'une clause préserve exactement sa portée juridique.
User, v1 (headline)	Voici une clause originale et sa version simplifiée. CLAUSE ORIGINALE: *[original clause]* VERSION SIMPLIFIÉE: *[simplified version]* Évaluez UNIQUEMENT la préservation du sens juridique: la version simplifiée dit-elle exactement ce que dit l'originale sur le plan du droit? Ignorez complètement la lisibilité, le style et la simplicité – ils sont évalués séparément. Barème (échelle ordinale de 1 à 10): - Partez de 10 (portée juridique identique). - Retirez un point par erreur juridique identifiée, parmi: * OMISSION: un élément juridiquement opérant de l'originale a disparu (condition, exclusion, délai, montant, partie liée, exception). * HALLUCINATION: la version simplifiée ajoute un contenu juridique absent de l'originale. * INCOHÉRENCE: la version simplifiée contredit l'originale (modalité, polarité, partie, quantum, portée). * CONFUSION: la version simplifiée rend la règle juridiquement ambiguë ou inintelligible alors que l'originale ne l'était pas. - 1 = le sens juridique n'est pas préservé du tout (règle inversée, autre règle, ou contenu sans rapport). Répondez uniquement par un objet JSON, sans texte autour: "erreurs": ["type": "...", "detail": "..."], "score": <entier de 1 à 10>
User, v3 (bare)	Voici une clause originale et sa version simplifiée. CLAUSE ORIGINALE: *[original clause]* VERSION SIMPLIFIÉE: *[simplified version]* Sur une échelle de 1 à 10, dans quelle mesure la version simplifiée préserve-t-elle le sens juridique de la clause originale? 10 = portée juridique identique, 1 = sens juridique pas préservé du tout. Ignorez la lisibilité et le style. Répondez uniquement par un objet JSON, sans texte autour: "erreurs": [], "score": <entier de 1 à 10>
v2	The v1 rubric translated into English, over the same French clauses (system prompt in English). Full text in the repository, `src/llm_judge.py`.

Table 12. Trained metrics, mean over 5 seeds, evaluated on the human-annotated test split only. *over%* is the share of test items on which the model predicts above the human label. *ident. pass* is the share of identical statutory probes predicted at ≥ 9.9, and *unrel. pass* the share of unrelated probes predicted at ≤ 1.1, on the 1–10 scale. LEXFLIP false acceptance is the share of edited pairs still scored ≥ 7 ("accurate" under the published rubric). The margin is the quantity of Section 2. It is shown as '–' where a model places the identical and unrelated probes within one point of each other. A model with no working range has none to spend on the edit. Pass rates and over% are percentages.

Model	r	ρ	RMSE	over%	ident. pass	unrel. pass	LEXFLIP false-acc.	LEXFLIP margin
JudgeBERT-Scalar (baseline)	$0.542_{\pm 0.08}$	0.280	2.48	25.4	0	0	0	–
JudgeBERT-Dist (soft labels)	$0.572_{\pm 0.03}$	0.578	1.99	42.9	0	0	69	0.015
JudgeBERT-Annot (5 heads)	$0.534_{\pm 0.05}$	0.585	3.47	12.6	0	0	0	–
JudgeBERT-Quantile (tau=.25)	$0.553_{\pm 0.06}$	0.377	3.28	9.9	0	0	0	–
JudgeBERT-MT (+charact.)	$0.519_{\pm 0.06}$	0.232	2.51	26.3	0	0	0	–
JudgeBERT-DA	$0.192_{\pm 0.25}$	0.112	2.31	42.5	0	77	18	0.019
JudgeBERT-DA+LexFlip	$0.122_{\pm 0.10}$	0.174	2.60	35.3	0	69	0	0.051
NLI-bidirectional (untrained)	0.395	0.405	2.22	46.6	1	–	–	*0.670*
Human ceiling	**0.597**	0.620	3.27	–	–	–	–	–

If a metric's correlation comes mostly from items where the simplification is much shorter, the metric detects deletion, not a change of law. Table 14 reports Pearson r inside each tercile of $||s| - |o||$. Within a tercile the length signal is roughly constant. A metric that keeps its correlation there uses something other than deletion, and a metric whose correlation collapses was reading length. This is a weaker form of the dissociation logic of Section 3.1. It holds a confound roughly fixed by conditioning, not exactly fixed by construction.

The result qualifies Section 4.6 in a way that cuts against our own argument, so we state it carefully. The length feature's correlation is mostly a *between*-tercile effect. Over the corpus it reaches 0.613. Inside the small and medium terciles it falls to 0.243 and 0.165 (95% CIs $[0.04, 0.45]$ and $[-0.02, 0.34]$). Among items with a similar length change, the length change says little. It recovers to 0.585 only in the tercile where the simplification is much shorter, which is where deletion is there to detect. The neural metrics have the opposite profile. In the medium tercile, BERTScore over FlauBERT holds 0.449 ($[0.29, 0.59]$) against 0.484 pooled, and LaBSE reaches 0.532 ($[0.37, 0.67]$) against 0.424 pooled. The intervals are wide, about 100 items per tercile, so these within-tercile contrasts are suggestive rather than precise. The surface ridge follows the raw length feature tercile by tercile, as expected if it is mostly a length model with extra terms. The small tercile is hard for every scorer. We read this as a floor effect: when the two sentences have nearly the same length, none of these signals has much to work with.

The fair reading is therefore narrower than "legal meaning preservation is length preservation". Length dominates the corpus-level ranking, and a comparison without a length control credits a metric with what belongs to that confound. But the neural metrics do not read *only* length. Where the length signal is weakest, they hold up, so whatever they read there is not the length change. Section 4.1 adds that this residual signal is still not legal sensitivity, because the same metrics hardly move when the law changes at fixed length. The two analyses answer different questions, and a metric has to pass both.

4.11. Correlation and Legal Sensitivity Come Apart

Take the 13 scorers that carry both a calibrated r and a margin. Over them, the rank correlation between the two is $\rho = 0.24$ (95% interval $[-0.39, 0.75]$). Seven of those points are nearly identical similarity metrics, so this interval shows an absence of resolution, not a demonstrated independence. The extremes are the durable part. The length feature outscores every semantic metric, and its margin is near zero by construction. Bidirectional NLI sits mid-table on correlation and reacts most to the edit.

Figure 4 marks two thresholds: a correlation at the human ceiling, and a margin of at least half the working range. None of the thirteen scorers in the main comparison and none of the trained models passes both. The region is reachable, however. Two configurations lie in it. One is the judge under the bare prompt ($r = 0.758$, margin 0.687, on the subsample). The other is the judge–NLI blend ($r = 0.762$, margin 0.574). Neither was selected on legal sensitivity:

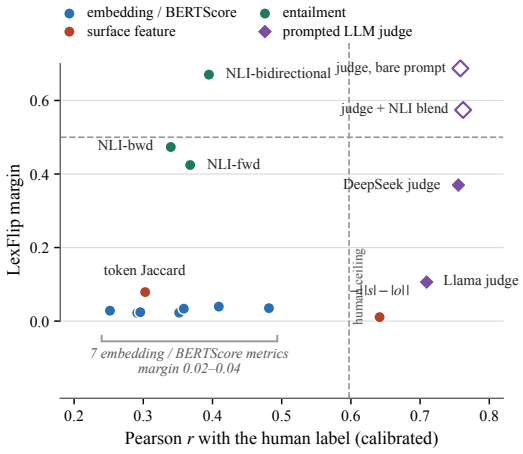
Table 13. Identical-pair and LEXFLIP checks for the scalar and augmented models, retrained with augmentation drawn from the training split only (mean over seeds). *Held-out* FRJUDGE *originals* are test-split originals paired with themselves, and edited by the LEXFLIP rules for the margin. *Statutory probes* are the probes of Table 12. *ident.* and *unrel.* are the mean predictions on identical and unrelated pairs (scale 1–10). $\geq$9.9 and $\geq$9 are the shares of identical pairs at or above each bar, in percent. The margin is shown as '–' when the model's identical and unrelated means are less than one point apart.

		held-out FRJUDGE originals					statutory probes			
Model	seeds	ident.	unrel.	$\geq$9.9	$\geq$9	margin	ident.	$\geq$9.9	$\geq$9	margin
Scalar	5	4.58	4.78	0	0	–	5.17	0	0	–
DA	5	6.40	4.44	0	0	0.00	5.05	0	0	0.01
DA+LexFlip	5	5.70	4.85	0	0	0.02	4.41	0	0	0.02

Table 14. Correlation with the human label *within* terciles of the absolute length change. For the length feature and the three unsupervised metrics, every column uses all 297 items, and the *all* column equals the full-corpus value. For the surface ridge and the trained JudgeBERT-Scalar, every column pools the out-of-fold test predictions over seeds. A tercile removes most of the length variance. A metric that measures legal meaning should therefore lose far less correlation there than one that measures deletion.

	r within tercile			
Metric	small	medium	large	all
$-\lvert\lvert s\rvert - \lvert o\rvert\rvert$	0.243	0.165	0.585	0.613
BERTScore-FlauBERT	0.198	0.449	0.413	0.484
LaBSE	0.174	0.532	0.240	0.424
NLI-bidirectional	0.058	0.269	0.291	0.365
Surface-Ridge	0.118	0.305	0.540	0.620
JudgeBERT-Scalar	0.042	0.149	0.602	0.496

Figure 4. Correlation against legal sensitivity. Horizontally, calibrated correlation with the human label, the quantity a conventional comparison selects on. Vertically, the share of the working range spent on an edit that changes legal force. Dashed lines mark the thresholds used in the text: the measured human ceiling ($r = 0.597$) and a margin of 0.5. Open markers are the prompt-variant and blend configurations of Section 4.7. The bare-prompt point comes from the 100-edit subsample.



the blend was fitted on correlation alone, and the prompt variants were a robustness check. A comparison that ranks metrics by correlation would not have found them. That is the practical point. The two properties do not track each other across the metrics in current use, so selecting on one does not deliver the other.

5. Discussion

The study set out to answer four questions, and the answers are as follows.

1. **RQ1.** The two checks in current use cannot separate a metric that reads legal force from one that reads overlap. Overlap passes both by construction.
2. **RQ2.** The seven similarity metrics barely react to a change of legal force. They react just as much to an edit that changes nothing in law. Bidirectional NLI and the DeepSeek judge react strongly to the legal edit and not at all to the inert one. Llama barely reacts to either. On low-overlap paraphrases, the similarity metrics drop more than on a legal edit, and NLI barely drops.
3. **RQ3.** Correlation with human ratings does not predict legal sensitivity across the metrics in use. The few configurations that have both were found by accident, not by selection.
4. **RQ4.** Training against the diagnostic did not transfer. On held-out items from the training corpus, the trained models still give an edited clause the score of an identical one.

What to report. A metric that claims to measure legal meaning should report three checks, not two. The identical-pair and unrelated-pair checks show calibration at the endpoints. LexFlip shows whether the metric moves when the law moves, and its force-preserving controls show whether it stays still when the law does not. Overlap satisfies the first two checks and fails the third. A low margin is therefore a measured deficiency of a metric, not a limit of automatic evaluation in general. We do not show that the deficiency is easy to fix. Our one attempt to train it away failed (Section 4.8).

Consequences for practice. For anyone *building* a metric, the results point to the training objective. The five configurations that differ only in target and loss move the correlation by less than seed noise. The two that change the training data lose correlation. An untrained bidirectional entailment score, the only scorer here whose objective concerns directional meaning containment, has the largest margin. It is a hypothesis, not a result, that a metric built on an entailment objective would keep that sensitivity. The margin of NLI may partly reflect its familiarity with negation and modality contrasts, and NLI is weak on party swaps. For anyone *reporting* a metric, R2 and R3 are cheap and change conclusions. Isotonic calibration removes most of the RMSE gap that uncalibrated tables attribute to supervision. A length control moves a semantic metric from "competitive with humans" to "below a feature that counts words". For anyone *deploying* a metric, the per-rule results are the main warning. NLI and the judge fail on different rules, and the DeepSeek judge treats the two directions of the modality rule differently. A deployment has to measure these blind spots on its own text, because no general score reveals them.

Beyond legal text. One finding may generalise beyond legal text. A validation protocol built only from endpoint checks can be satisfied by construction. The repair holds one variable fixed while it moves the other. It applies to any evaluation where the property of interest goes with surface form in naturally occurring data. A second finding is narrower. Training against the diagnostic did not transfer for one encoder, one corpus and one mixture. This agrees with earlier reports that counterfactually augmented training data does not reliably improve generalisation [37, 38]. It is still a hypothesis about diagnostics in training mixtures, not a general result.

For the next corpus. Three design choices would make the next corpus in this area more useful. First, spread the source documents evenly enough that a grouped split is possible. Second, keep a held-out set of minimally edited negatives and force-preserving controls out of every training mixture. Publish it with the ratings, so that legal sensitivity can be reported beside correlation. Third, release a stable pseudonymous identifier for each annotator. This makes a ceiling measurable downstream. It must be balanced against annotator privacy: an identifier should carry no name, and timestamps and free-text fields should be coarsened or reviewed before release. Quebec statutes are enacted in French and English, so their English

versions offer a ready test of whether these results hold for English drafting.

6. Limitations

Labels and items. The LEXFLIP labels are definitional. The modality rule rests on the Quebec Interpretation Act, and polarity, quantum and time edits change the rule on their face. Party, connective and class edits depend on context, and some edits alter legal force without reversing it. The label audit of Section 3.3 was done by one jurist, so it gives no agreement between jurists. A sample cannot certify every item in any case. It found 12 generator errors and a share of unidiomatic edited sentences, which we report rather than remove. The edits are single and generated from templates. Real simplification errors are more often omissions and lost qualifiers. The diagnostic is therefore a necessary condition, not a model of real errors. A system could be tuned to it without acquiring general legal sensitivity. The scope rule also produces unidiomatic French on 34 items, which we report rather than remove.

Scorers. Bidirectional NLI's margin may reflect familiarity with the *form* of negation, modality and quantifier contrasts, rather than sensitivity to their legal consequence. NLI training data is built around these contrasts [11, 12]. The neutral control reduces this concern for edits that touch a modal token without changing force, but does not remove it. The judge results rest on two model families and on a rubric we reconstructed from its published description. Wording alone moves the margin by 0.267. The open-weight judge also wrote the paraphrase controls, so its own scores on that cell may favour its own wording.

Scope. The diagnostic and the corpus comparison run on different text, two statutes against insurance forms, and answer different questions. No human baseline on LEXFLIP exists, so margins are read comparatively. The corpus is one language and one legal system. The motivating concerns of this article are partly English and common law, and whether the same dissociation holds for common-law English drafting is open. The bilingual Quebec statutes are the natural first test.

7. Conclusion

Legal meaning preservation metrics are validated today by two checks that lexical overlap satisfies by construction. We proposed a third check that overlap cannot satisfy, released LEXFLIP to administer it, and paired it with controls that change wording but not law. Every similarity-based metric in current use spends between 0.022 and 0.039 of its working range on an edit that changes a statutory obligation. It spends about as much on an edit that changes nothing. Bidirectional NLI spends 0.670 on the first and nothing on the second. It is the family that the identical-pair convention would have excluded. On the only public corpus for this task, a supervised ridge over word counts matches the measured human ceiling and beats most semantic metrics. A prompted judge exceeds the ceiling but gives a clause whose legal force has changed 6.69 out of ten. Across the metrics in use, correlation with human ratings does not predict sensitivity to a change in the law. Reporting both, with a force-preserving control, is the smallest change that would make the difference visible.

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Ethical Statement

The label audit of Section 3.3 was carried out by one Quebec jurist, who took part voluntarily and is not named. The audit collected no personal data, and only the item-level labels are released. The study involves no animal subjects. If further jurists extend the audit, their responses will be collected on the same terms and reported only in aggregate.

The study reuses an existing annotated corpus, FRJUDGE, and pseudonymises its five annotators as A–E throughout. The corpus authors distribute the raw annotation export publicly, under the same licence as the corpus. The export records the annotators' first names. We never use or publish these names. Our code replaces them with pseudonyms on loading, our copy coarsens per-annotation timestamps to the day, and we reported the issue to the corpus authors. We also release the pseudonymisation script for anyone who redistributes a reconstruction.

Beauchemin et al. [4] caution that their metric informs a practitioner about legal meaning preservation but does not supply a complete juridical analysis. Our results turn that caution into a rule. A metric that cannot distinguish *doit* from *peut* must not decide whether a simplified clause is safe to publish. The appropriate use is triage, the ranking of clauses for human review, not certification. Nothing in this article is legal advice. The perturbed sentences we release are deliberate misstatements of Quebec law. The release labels them as such, and they are not statements of the law.

Conflicts of Interest

The author declares that he has no conflicts of interest to this work.

Data Availability Statement

The data and code that support the findings of this study are openly available at `https://github.com/Nyvora-Vision-Labs/LexFlip`. The repository contains the following.

- The LEXFLIP generator, the released item set and the two force-preserving control sets.
- The expert-audit sample, its blind workbook and the key that maps items to rules.
- The scoring harness, the cached responses of every prompted judge, the document-grouped splits, and the result files behind every table.
- A pseudonymised reconstruction of FRJUDGE from the corpus authors' public raw export, with annotator identity (as A–E) and source document. We redistribute this file under the licence of the original corpus [4], with attribution. The corpus itself remains available from its authors.

The statutory sentences come from the Automobile Insurance Act and the Highway Safety Code. Every perturbed sentence is a deliberate misstatement of Quebec law, and the release labels it as such. The code is released under the MIT licence and the LEXFLIP items, controls, audit materials and result files under CC BY 4.0. The FRJUDGE reconstruction follows the original corpus, whose paper and repository state CC BY 4.0 and CC BY-NC-SA 4.0 respectively. We redistribute it under the stricter CC BY-NC-SA 4.0.

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